

Chief Justice's Court

Case :- SPECIAL APPEAL DEFECTIVE No. - 547 of 2010

Petitioner :- U.P. Power Corporation Limited Thru Executive Engineer

Respondent :- Electricity Ombudsman & Ors. (M/S 5670/2007)

Petitioner Counsel :- Kapil Misra

Respondent Counsel :- Dhruv Mathur

Hon'ble Ferdino Inacio Rebello, Chief Justice

Hon'ble Shri Narayan Shukla, J.

This special appeal arises out of an order of the learned Single Judge, who was hearing the writ petition against the interim order passed by the Ombudsman as the Appellate Authority from an order of the Consumer Grievance Redressal Forum and an objection has been raised on behalf of the contesting respondent that this should not be governed by the provisions of Chapter VIII Rule 5 of the Allahabad High Court Rules, hence no appeal will lie.

Learned counsel for the appellant seeks time.

Put up on 17th of August, 2010.

Order Date :- 16.8.2010

RKK/-

(S.N. Shukla, J.)

(F.I. Rebello, CJ)

Chief Justice's Court

Case :- SPECIAL APPEAL DEFECTIVE No. - 547 of 2010

Petitioner :- U.P. Power Corporation Limited Thru Executive Engineer

Respondent :- Electricity Ombudsman & Ors. (M/S 5670/2007)

Petitioner Counsel :- Kapil Misra

Respondent Counsel :- Dhruv Mathur

Hon'ble Ferdino Inacio Rebello, Chief Justice

Hon'ble Shri Narayan Shukla, J.

Put up tomorrow, as part heard, as first case in the morning.

(Shri Narayan Shukla, J.) (F.I. Rebello, C.J.)

Order Date :- 17.8.2010

Amit

Special Appeal (Defective) No. 547 of 2010

**U.P. Power Corporation Ltd., through Executive Engineer,
Electricity Distribution Division, Unnao****Vs.****Electricity Ombudsman, 3rd Floor Neda Building, Vibhuti Khand,
Gomti Nagar, Lucknow & Ors.****Appearance:****For the Appellant : Mr. Kapil Misra, Advocate****For the Respondents : Mr. Dhruv Mathur, Advocate****Hon'ble Ferdino I. Rebello, C.J.****Hon'ble Shri Narayan Shukla, J.****(By : Justice Ferdino I. Rebello, C.J.)**

The contesting respondent has raised a preliminary objection that the appeal, as filed, is not maintainable in view of Rule 5 Chapter VIII of the Allahabad High Court Rules, 1952 (hereinafter referred to as the 'Rules').

2. To answer the issue, we may briefly set out some facts. A petition came to be filed by respondent no.3 before the Electricity Grievance Redressal Forum (hereinafter referred to as the 'Forum'), wherein an application for interim relief was also filed. The Forum, by its order dated 17.03.2007 rejected the petition for stay and application for interim relief. The respondent no.3, thereafter, made a representation to the Electricity Ombudsman, which was numbered as Appeal No. 08 of 2007. The

Ombudsman, by a detailed order, was pleased to hold that the consumer is not liable to pay the difference in KVAH of main meter and check meter and, consequently, allowed the appeal filed by respondent no.3 herein. Further direction was issued that the appellant herein shall provide the bill only on the basis of main meter No. UPE 54864 up to 19.09.2006 and thereafter on the basis of new main meter No. UPE 64196.

3. The appellant, aggrieved by the said order, filed a petition before this Court being Writ Petition No. 5670 (M/S) of 2007. A learned Single Judge, by order dated 16.12.2008, was pleased to hold that the finding of fact recorded by the Electricity Ombudsman does not seem to suffer from any impropriety or illegality and, consequently, dismissed the petition. The appellant, against the said order, preferred a review petition, which was numbered as Review Petition Defective No. 105 of 2009 and, as none appeared for the appellant herein, the learned Judge, by order dated 23.04.2010, was pleased to hold that there appeared to be no error on the face of the record calling for interference by this Court and dismissed the review petition. An application to recall the order dated 23.04.2010 was moved, which came to be dismissed by order dated 09.07.2010 on the ground that the application was not maintainable, as the review petition had already been dismissed by order dated 23.04.2010. The present appeal has been preferred against the aforesaid three orders. Since the main order dated 16.12.2008 itself is the subject matter of this appeal, it is not necessary to consider the legality of the order passed in review

petition and the order passed on the application for recalling the order dated 23.04.2010 as the main order is impugned before us.

4. The controversy before us is, whether the present appeal filed against the order dated 16.12.2008 is maintainable? There is no doubt that the order has been passed by the Ombudsman pursuant to the powers conferred under Section 42 of the Electricity Act, 2003 (hereinafter referred to as the 'Act'), which reads as under:-

“Section 42 - Duties of distribution licensee and open access. (1) It shall be the duty of a distribution licensee to develop and maintain an efficient, co-ordinated and economical distribution system in his area of supply and to supply electricity in accordance with the provisions contained in this Act.

(2) The State Commission shall introduce open access in such phases and subject to such conditions, (including the cross subsidies, and other operational constraints) as may be specified within one year of the appointed date by it and in specifying the extent of open access in successive phases and in determining the charges for wheeling, it shall have due regard to all relevant factors including such cross subsidies, and other operational constraints:

PROVIDED that such open access shall be allowed on payment of a surcharge in addition to the charges for wheeling as may be determined by the State Commission:

PROVIDED FURTHER that such surcharge shall be utilised to meet the requirements of current level of

cross subsidy within the area of supply of the distribution licensee:

PROVIDED also that such surcharge and cross subsidies shall be progressively reduced in the manner as may be specified by the State Commission:

PROVIDED also that such surcharge shall not be leviable in case open access is provided to a person who has established a captive generating plant for carrying the electricity to the destination of his own use:

[PROVIDED also that the State Government shall, not later than five years from the date of commencement of the Electricity (Amendment) Act, 2003, by regulations, provide such open access to all consumers who require a supply of electricity where the maximum power to be made available at any time exceeds one megawatt.

(3) Where any person, whose premises are situated within the area of supply of a distribution licensee, (not being a local authority engaged in the business of distribution of electricity before the appointed date) requires a supply of electricity from a generating company or any licensee other than such distribution licensee, such person may, by notice, require the distribution licensee for wheeling such electricity in accordance with regulations made by the State Commission and the duties of the distribution licensee with respect to such supply shall be of a common carrier providing non-discriminatory open access.

(4) Where the State Commission permits a consumer or class of consumers to receive supply of

electricity from a person other than the distribution licensee of his area of supply, such consumer shall be liable to pay an additional surcharge on the charges of wheeling, as may be specified by the State Commission, to meet the fixed cost of such distribution licensee arising out of his obligation to supply.

(5) Every distribution licensee shall, within six months from the appointed date or date of grant of licence, whichever is earlier, establish a forum for redressal of grievances of the consumers in accordance with the guidelines as may be specified by the State Commission.

(6) Any consumer, who is aggrieved by non-redressal of his grievances under sub-sec. (5), may make a representation for the redressal of his grievance to an authority to be known as Ombudsman to be appointed or designated by the State Commission.

(7) The Ombudsman shall settle the grievance of the consumer within such time and in such manner as may be specified by the State Commission.

(8) The provisions of sub-sections (5), (6) and (7) shall be without prejudice to right which the consumer may have apart from the rights, conferred upon him by those sub-sections.”

5. Section 42 (6) of the Act is also relevant, which reads as under:-

“ **42. Duties of distribution licensees and open access.-** (1) ...

(6) Any consumer, who is aggrieved by non-redressal of his grievances under sub-section (5), may

make a representation for the redressal of his grievance to an authority to be known as Ombudsman to be appointed or designated by the State Commission. ”

6. The Uttar Pradesh Electricity Regulatory Commission, in exercise of powers conferred by Section 181 read with sub-sections (5) to (8) of Section 42 of the Act, has framed Regulations, known as the U.P. Electricity Regulatory Commission (Consumer Grievance Redressal Forum & Electricity Ombudsman) Regulations, 2007 (hereinafter referred to as the ‘Regulations’). By virtue of the Regulations, the U.P. Electricity Regulation Commission has constituted two bodies - (1) Consumer Grievance Redressal Forum, and (2) Electricity Ombudsman.

We may refer to the relevant provisions of the Regulations dealing with the Ombudsman, which read as under:-

“8.0 Representation before Electricity Ombudsman

8.1 (i) Any consumer aggrieved by the order made by the Forum or where the Forum has failed to redress the grievance within the specified period or Distribution Licensee is aggrieved by the Order of the Forum, may prefer representation to the ‘Electricity Ombudsman’.

...

...

...

8.2 No representation shall lie to Electricity Ombudsman unless -

(a) the Consumer has made a written representation to the Forum in prescribed manner and the Forum has either rejected the representation or has failed to dispose it of within specified time;

(b) the consumer or the Distribution Licensee is aggrieved by the decision of the Forum;

(c) the representation is in respect of the matter, which has not been already settled by the Electricity Ombudsman or by any Court, Tribunal or any other competent authority;

(d) the representation relates to a matter which is not pending in any Court, Tribunal, Arbitrator or any other competent authority.

... ..

10.1 (i) The Electricity Ombudsman shall be the Chief Executive of his Office.

(ii) The Electricity Ombudsman may issue such directions as may be considered necessary for discharge of functions by the Forum under these Regulations.

... ..

10.3 Subject to provisions of these Regulations, the Electricity Ombudsman shall specify the procedure to be adopted for issue of notices, calling attendance, examination on oath, receipt of evidence and requisitioning of records and may also specify the form and manner in which a representation is to be submitted before him.

11.0 Duties of the Ombudsman –

(i) The Electricity Ombudsman shall –

(a) settle the grievance of the consumer who is aggrieved by non-redressal of his grievance by Consumer Grievance Redressal Forum on a representation made by such consumer within thirty days of the receipt thereof;

Provided that an Electricity Ombudsman shall not hear any matter, which pertains to matters mentioned in Regulation 5.1.

(b) receive representations against the order of the Consumer Grievance Redressal Forum and consider such complaints and facilitate to his satisfaction or settlement by agreement, through conciliation and mediation between a licensee and the aggrieved parties or by passing an award after hearing the parties in accordance with the Electricity Act 2003, provisions of U.P. Electricity Reforms Act, 1999 not being inconsistent with Electricity Act, 2003, Rules or Regulations made there under particularly tariff orders, and Electricity Supply Code.

(c) settle the grievance of the consumer ordinarily within three months.

(d) deal with any other matter referred by the Commission.

(ii) The electricity Ombudsman may, after hearing the Forum or other interested parties, if any, from time to time, issue such orders, instructions or direction to any forum for the performance of its function under these Regulations as may be deemed fit.

12.1 The Electricity Ombudsman -

(i) may call for records relating to the representation from the concerned Forum and the concerned Forum shall send the entire records

within 7 days from the date of receipt of such notice to the office of the Electricity Ombudsman;

(ii) may determine the manner, the place, the date and the time of the hearing of the matter, as considered appropriate;

(iii) shall hear the parties and may direct the parties to submit written submissions in the matter;

(iv) may pass interim order as deemed necessary;

(v) shall pass a reasoned order for all his findings and award;

(vi) shall pass an award as early as possible, preferably within three months from the date of receipt of the representation and where there is delay in disposal of a representation within the said period of three months, shall record reasons of such delay.

(vii) shall send a copy of the order to the parties.

12.4 The Electricity Ombudsman may endeavour to promote a settlement of the representation/complaint received through conciliation or mediation. To promote such a settlement, the Electricity Ombudsman may follow such procedures as he may consider appropriate in the interest of justice and he shall not be bound by any rule of evidence or procedure.

12.6 The order passed by the Electricity Ombudsman shall set out –

(i) issue wise decision;

(ii) reasons for passing the order; and

(iii) direction/s, if any, to the Distribution Licensee/Consumer.

12.8 The consumer or the Distribution Licensee, aggrieved of the decision of the Ombudsman, may approach any Court or Tribunal having jurisdiction to decide such grievance.

14.1 In case, a Distribution Licensee fails to comply with the orders of the Forum or, as the case may be, of the Electricity Ombudsman, within 30 days of the order or within such time as may be granted, the Electricity Ombudsman may within thirty days of the date of the application of the consumer and, after giving opportunity to the Distribution Licensee, -

- (a) issue necessary direction to ensure compliance of the order; or
- (b) refer the matter to the Commission for appropriate order under Section 142 of the Act.”

7. We may now reproduce Rule 5 of Chapter VIII of the Rules, which reads as under:-

“5. Special Appeal. – An appeal shall lie to the Court from a judgment (not being a judgment passed in the exercise of appellate jurisdiction in respect of a decree or order made by a Court subject to the superintendence of the Court and not being an order made in the exercise of revisional jurisdiction or in the exercise of its power of superintendence or in the exercise of criminal jurisdiction or in the exercise of jurisdiction conferred by Article 226 or 227 of the Constitution in respect of any judgment, order or award – (a) of a tribunal, Court or statutory arbitrator made or purported to be made in the exercise or purported

exercise of jurisdiction under any Uttar Pradesh Act or under any Central Act, with respect to any of the matters enumerated in the State List or the Concurrent List in the Seventh Schedule to the Constitution, or (b) of the Government or any Officer or authority, made or purported to be made in the exercise or purported exercise of appellate or revisional jurisdiction under any such Act of one Judge.”

The said Rule can be read in the following manner:-

“5. Special Appeal. – An appeal shall lie to the Court from a judgment (not being a judgment passed in the exercise of appellate jurisdiction) in respect of a decree or order made by a Court subject to the superintendence of the Court-

Not being an order made –

in the exercise of revisional jurisdiction, or

in the exercise of its power of superintendence, or

in the exercise of criminal jurisdiction, or

in the exercise of jurisdiction conferred by Article 226 or 227 of the Constitution in respect of any judgment, order or award –

(a) of a tribunal, Court or statutory arbitrator made or purported to be made in the exercise or purported exercise of jurisdiction under any Uttar Pradesh Act or under any Central Act, with respect to any of the matters enumerated in the State List or the Concurrent List in the Seventh Schedule to the Constitution, or

(b) of the Government or any Officer or authority,

made or purported to be made in the exercise or purported exercise of appellate or revisional jurisdiction under any such Act of one Judge.”

8. It is the submission on behalf of respondent no.3, that if the order is made by the Government or any officer or authority in the purported exercise of appellate or revisional jurisdiction, an appeal would not lie, provided that the order is made under any Central Act or Uttar Pradesh Act with respect to any of the matters enumerated in the State List or the Concurrent List in the Seventh Schedule to the Constitution of India. In the instant case, the Act is enacted pursuant to Entry 38 of the Concurrent List. The Consumer Grievance Redressal Forum and the Electricity Ombudsman have their powers defined under the Regulations. The scheme of the Regulation is such that the consumer having a grievance may, first approach the Forum by filing a complaint, and if the consumer is aggrieved by the decision of the Forum, then he may approach the Ombudsman by way of representation. Considering the provisions of the Regulations and the powers conferred on the Electricity Ombudsman, which we have quoted above, it is submitted that the Ombudsman was exercising his power as an Appellate Authority by adjudicating upon the decision of the Forum. Reference is made to various decisions of the Supreme Court and Dictionary meaning of the word ‘appeal’.

In the alternative, it is also submitted that the Ombudsman is a Tribunal and, therefore, no appeal would lie, as the Court exercises its power of superintendence over the Tribunals. Reliance has been placed on

various judgments to substantiate the point that the Ombudsman is a Tribunal. On the basis of above submission, it is submitted that the preliminary objections be upheld and the appeal be dismissed.

9. On the other hand, on behalf of the appellant, it is submitted that under Rule 5 Chapter VIII of the Rules, a special appeal will not lie against an order passed by a Tribunal exercising appellate or revisional jurisdiction. The Ombudsman, it is submitted, is not an Appellate Authority or Tribunal, inasmuch as Section 110 of the Act provides for establishment of an Appellate Tribunal and Section 111 thereof provides for appeal to the Appellate Tribunal and the manner under which the appeal shall be taken up. It is submitted that considering the provisions including the Regulations, had the Electricity Ombudsman been the Appellate Authority, there would have been no need of establishing another Appellate Tribunal under Section 110 of the Act. The Ombudsman, it is submitted, is not an Appellate Authority but an authority created under the Regulations. Reference is made to the various regulations, which include power of the Ombudsman and his duties. It is also submitted that the Ombudsman is not a Tribunal, but is an appointee of the State Electricity Regulatory Commission and his powers and duties are conferred under the Regulations. He is an authority empowered to investigate individual complaints against public authorities, department etc. and are designated neutral or impartial dispute resolution practitioners. It is, therefore, submitted that the Ombudsman is not a Tribunal or Appellate Tribunal to hear and decide any appeal. It is,

therefore, submitted in these circumstances, that the preliminary objection as raised ought to be dismissed.

10. The first question for our consideration is, whether the Ombudsman, when he entertains a representation under Regulation 11 of the Regulations, acts as an Appellate Authority? We have quoted various Regulations as also the provisions of the Act. By virtue of Section 42 (6) of the Act, an aggrieved consumer can prefer a representation which is styled as an appeal, but which expression is neither found in the Act or the Regulations. Under Regulation 11 (b) of the Regulations, the Ombudsman has to facilitate to his satisfaction all settlement by agreement, through conciliation and mediation between a licensee or an aggrieved party or by passing an award after hearing the parties in accordance with the Act, Rules and Regulations made there under as also the provisions of the Electricity Supply Code. In other words, the Ombudsman acts as an alternative dispute resolution mechanism. Though, the Ombudsman has to pass a reasoned order on all his findings and award, yet the consumer or the Distribution Licensee, aggrieved by the decision of the Ombudsman, may approach any Court or Tribunal having jurisdiction to decide such grievance. In other words, there is no finality to the decision of the Ombudsman nor is it the hierarchy of Courts provided under the Act, as under Regulation 12.8 of the Regulations, the consumer or the Distribution Licensee may approach any Court or Tribunal having jurisdiction to decide such grievance.

11. With the above background, we may now consider some aspects of what constitutes an appeal. In **Shiv Shakti Cooperative Housing Society Vs. Swaraj Developers, (2003) 6 SCC 659**, the Supreme Court observed as under:-

28. Appeal is the right of entering a superior Court and invoking its aid and interposition to redress the error of the court below. (per Westbury C., A.G. v. Sillem, 10 HLC 704 = 33 LJ ex. 209).

29. "Appeal", is defined in the Oxford Dictionary, volume I, page 398, as the transference of a case from an inferior to a higher Court or tribunal in the hope of reversing or modifying the decision of the former. In the Law Dictionary by Sweet, the term "appeal" is defined as a proceeding taken to rectify an erroneous decision of a Court by submitting the question to a higher Court or Court of appeal, and it is added that the term, therefore, includes, in addition to the proceedings specifically so called, the cases stated for the opinion of the Queen's Bench Division and the Court of Crown Cases reserved, and proceedings in error. In the Law Dictionary by Bouvier an appeal is defined as the removal of a case from a Court of inferior to one of superior jurisdiction for the purpose of obtaining a review and re-trial, and it is explained that in its technical sense it differs from a writ of error in this, that it subjects both the law and the facts to a review and re-trial, while the latter is a Common Law process which involves matter of law only for re-examination; it is added, however, that the term "appeal" is used in a comprehensive sense so as to

include both what is described technically as an appeal and also the common law writ of error. As Mr. Justice Subramania Ayyar observes in *Chappan v. Moidin*, (1898) 8 MLJ 231 at p.80 the two things which are required to constitute appellate jurisdiction are the existence of the relation of superior and inferior Court and the power, on the part of the former, to review decisions of the latter.”

In *Tirupati Balaji Developers (P) Ltd. Vs. State of Bihar*, (2004)

5 SCC 1, the Supreme Court observed as follows:-

“9. ...Appeal implies in its natural and ordinary meaning the removal of a cause from any inferior court or tribunal to a superior one for the purpose of testing the soundness of decision and proceedings of the inferior court or tribunal. The superior forum shall have jurisdiction to reverse, confirm, annul or modify the decree or order of the forum appealed against and in the event of a remand the lower forum shall have to rehear the matter and comply with such directions as may accompany the order of remand. The appellate jurisdiction inherently carries with it a power to issue corrective directions binding on the forum below and failure on the part of the latter to carry out such directions or show disrespect to or to question the propriety of such directions would – it is obvious be destructive of the hierarchical system in administration of justice. The seekers of justice and the society would lose faith in both.”

We may also refer to some Dictionary meanings of the word ‘appeal’. In Stroud’s Judicial Dictionary, 6th Edition, ‘Appeal’ has been described as under:-

“The right of appeal is only by statute. It is not in itself a necessary part of the procedure in an action, but: is the right of entering a superior court and invoking its aid and interposition to redress the error of the court below. In Black’s Law Dictionary, Eight Edition, the appeal has been described as a proceeding undertaken to have a decision reconsidered by a higher authority esp. the submission of a lower court’s or agency’s decision to a higher court of review and possible reversal...

In P. Ramanatha Aiyar’s Advanced Law Lexicon, 3rd Edition, “appeal” amongst others has been described as a right of entering a superior court and invoking its aid and interposition to redress the error of the court below.

We may also refer to the following judgments.

In **Shankar Ramchandra Abhyankar Vs. Krishnaji Dattatraya Bapat, (1970) 1 SCR 322**, the Supreme Court was considering the expression “appeal” in the context of revisional jurisdiction. The Court held that it is one of the modes of exercising power conferred by the statute. Basically and fundamentally it is the appellate jurisdiction of the High Court which is being invoked and exercised in a wider and larger sense.

In **State of Gujarat Vs. Salimbai, 2003 Cri. L.J. 4348**, the Supreme Court held that the appeal is a proceeding taken to rectify an erroneous decision of a Court by submitting the question to a higher Court.

As noted by the Supreme Court in **Snehadeep Structures Pvt. Ltd. Vs. Maharashtra Small-Scale Industries Development Corporation Ltd., (2010) 3 SCC 34**, in almost all definitions of ‘appeal’, there is reference to removal of a cause from an inferior court to a superior court. It is also trite that an arbitrator deriving his authority from a private agreement does not fit into the ordinary hierarchy of courts. The Court also observed that the term ‘appeal’ does not always indicate a process where all questions of fact and law can be re-agitated and that various Courts have held that even a revision petition to be an ‘appeal’ keeping in mind the object of the legislation.

12. Therefore, considering the tests laid down in the judgments referred to, and as there is no finality to the decision or award of the Ombudsman, the party can approach an appropriate Court or Tribunal under Regulation 12.8. It, therefore, cannot be said that the decision or award by the Ombudsman under the provisions contained in Regulations is in exercise of any appellate jurisdiction. Once that be the case, the Ombudsman cannot be said to be an Appellate Authority and, consequently, the first objection must be rejected.

13. The next question is, whether the Ombudsman, while considering a representation, acts as a Tribunal? We may refer to the judgment of the

Supreme Court in the case of **Union of India Vs. R. Gandhi, President Madras Bar Association, JT 2010 (5) SC 553**. In this case, the Supreme Court enumerated the features of a ‘Tribunal’ as under:-

“14. ... (i) Courts are established by the State and are entrusted with the State’s inherent judicial power for administration of justice in general. Tribunals are established under a statute to adjudicate upon disputes arising under the said statute or disputes of a specified nature. Therefore, all courts are Tribunals but all Tribunals are not Courts.

(ii) Courts are exclusively manned by Judges. Tribunals can have a Judge as the sole member or can have a combination of a Judicial Member and a technical who is an ‘expert’ in the field to which the Tribunal relates. Some highly specialised fact finding Tribunals may have only Technical Members but they are rare and exceptions.

(iii) While Courts are governed by detailed statutory provisional rules in particular the Code of Civil Procedure and Evidence Act, requiring an elaborate procedure in decision making, Tribunals generally regulate their own procedure applying the provisions of the Code of Civil Procedure only where it is required and without being restricted by the strict rules of Evidence Act.”

In **Law Lexicon**, the expression ‘Tribunal’ has been defined as under:-

“The expression ‘Tribunal’ as used in Article 136 of the Constitution does not mean the same thing as

‘Court’ but includes within its ambit all adjudicating bodies, provided they are **constituted by the State** and are invested with judicial as distinguished from purely administrative or executive functions.

Further the procedural Rules which regulate the proceedings before the Tribunals and the power conferred on them in dealing with matters brought before them are something described as the trappings of a Court and in determining the question as to whether a particular body or authority is a Tribunal or not a tough and ready test is applied by requiring whether the said body or authority is clothed with the trappings of a Court. The basic and essential condition which makes an authority or a body, a Tribunal is that it should be constituted by the State and should be invested with the State’s inherent judicial power distinguished from purely administrative or executive functions.”

In Committee of Management & Anr. Vs. Regional Deputy Director of Education, Agra & Ors., [2005 (23) LCD 441], the question for consideration before the Full Bench of five Judges was, as to whether the Deputy Director of Education exercising powers under the U.P. Intermediate Education Act, 1921 was acting as a Tribunal? The Court observed as under:-

“25. The Deputy Director of Education is, however, not vested with any judicial powers. He has no power to compel the attendance of witnesses and to examine them on oath. He is not required to follow the rules of evidence; the sittings are not held in public and

no finality is attached to his decision. Further, he has no power to impose fine, damages or to issue prohibitory orders. He does not exercise any sovereign powers and thus it cannot be said that the Deputy Director of Education acts as a Tribunal while deciding the disputes.”

14. As we have noted from Section 42 (6), quoted above, the Act itself provides for constitution of an authority to be known as ‘Ombudsman’ to decide representations for redressal of grievances. Under the Regulations, the Ombudsman is bound to pass a reasoned order on his findings and award. However, the Ombudsman is to be appointed or designated by the State Commission as a mechanism against non-redressal of grievance by the Forum. Thus, the mechanism is in respect of grievance of the consumer and not the Distribution Licensee. The Distribution Licensee aggrieved by an order of a Forum can move the Ombudsman. The Ombudsman, considering Regulation 11, has to facilitate a settlement by agreement, through conciliation, mediation or by passing an award. This is an exercise that can be done by a private party, except that the party is known because of the Act as an Ombudsman. The award passed is not under the Arbitration and Conciliation Act, 1996 nor the conciliation award. The Regulations do not give finality to the decisions of the Ombudsman. Thus, the Ombudsman is surely not a Tribunal, though it exercises quasi judicial function. It can be other authority. Under Rule 5 Chapter VIII of the Rules, which we have quoted earlier, the exercise of

the power has to be in appellate or revisional jurisdiction, which is not the case here.

The learned Single Judge, insofar as the Ombudsman is concerned, does not exercise power of superintendence on a Tribunal as contemplated under Article 227 of the Constitution of India. The power of superintendence has to be in respect of Courts and Tribunals in relation to which it exercises jurisdiction. The decision through mediation or conciliation or by an award is by the authority, who has been conferred these powers and who has been designated as an Ombudsman. In our opinion, therefore, the learned Single Judge, when exercised his jurisdiction, was not exercising jurisdiction on a Tribunal, as noted under Article 227 of the Constitution of India, but an authority discharging quasi judicial powers.

15. In our opinion, therefore, it cannot be said that the appeal, as filed, is not maintainable. Considering the above, we hold that the appeal is maintainable.

16. Consequently, the matter be placed before the appropriate Bench for hearing on merits.

September 23, 2010

AHA

(Shri Narayan Shukla, J.) (Ferdino I. Rebello, C.J.)

Court No. - 1

Case :- SPECIAL APPEAL DEFECTIVE No. - 547 of 2010

Petitioner :- U.P. Power Corporation Limited Thru Executive Engineer

Respondent :- Electricity Ombudsman & Ors. (M/S 5670/2007)

Petitioner Counsel :- Kapil Misra

Respondent Counsel :- Dhruv Mathur

Hon'ble Uma Nath Singh,J.

Hon'ble Dr. Satish Chandra,J.

(C.M.Application No.24370 of 2013 - Application for listing)

List in next cause list.

Application is disposed of.

Order Date :- 13.3.2013

ank

Court No. - 24

Case :- SPECIAL APPEAL DEFECTIVE No. - 547 of 2010

Appellant :- U.P. Power Corporation Limited Thru Executive Engineer

Respondent :- Electricity Ombudsman & Ors. (M/S 5670/2007)

Counsel for Appellant :- Kapil Misra

Counsel for Respondent :- Dhruv Mathur

Hon'ble Rajiv Sharma,J.

Hon'ble Zaki Ullah Khan,J.

Heard learned counsel for the parties and perused the record.

The instant Special Appeal has been filed against the judgment and order dated 16.12.2008 passed learned Single Judge in Writ Petition No.5670 (M/S) of 2007 as also against the orders passed in Review Petition.

It is contended by the learned counsel for the Corporation that Hon'ble the Single Judge while accepting the findings of the alleged Electricity Ombudsman had not appreciated the fact that it was not a case of defective meter and as such the proceedings for imposing the penalty were never initiated. It has also been argued that Hon'ble the Single Judge while dismissing the petition gave the liberty to the appellant to proceed afresh but did not provide that the findings recorded by this Court would not influence the proceedings. Lastly, it has been submitted that the order passed by the learned Single Judge suffers from illegality and infirmity and is liable to be set aside.

We have gone through the impugned judgments and material available on record, which reveal that the findings of the Electricity Ombudsman have not been challenged or disputed by the appellant. The appellant ought to have established that the findings of the Electricity Ombudsman are perverse and unfounded. As far as the install of check meter is concerned, it is incumbent upon the authority/appellant to have recorded reasonable doubt with regard to the accuracy of the meter but no such exercise was done, which clearly shows that the check meter was installed without following the due procedure of law. All these facts have been considered by the learned Single Judge.

We do not find any perversity in the order passed by the learned Single Judge. Moreover, learned counsel for the appellant has also failed to establish any illegality in the orders. Accordingly, Special Appeal being devoid of merit is hereby dismissed.

Order Date :- 14.7.2014

akhilesh/-